

26VECV02560 26VECV02560

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-29

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Tentative Ruling

Mares v. American Honda Motor Co.,

Case no. 26VECV02560

Hearing date September 29, 2026

Defendant

Honda's Motion to Compel Arbitration

Plaintiff

Mares sues defendant American Honda Motor Co., Inc., alleging violations of the Song-Beverly Act. Defendant moves to compel arbitration. Plaintiff opposes.

Defendant

offers the declaration of counsel Pacheco. Plaintiff objects. Obj. 1-6

OVERRULED.

California

public policy strongly favors arbitration. Code Civ. Proc. §1280 et seq., *Madden v. Kaiser Found. Hosps.* (1976) 17 Cal.3d 699, 706. Under the California Arbitration Act, if there is a valid written agreement to arbitrate, arbitration is mandatory. Code Civ. Proc. §1281.2. The opposing party bears the burden of proving defenses to arbitrability, including unconscionability. See *Pinnacle Museum Tower Ass'n. v. Pinnacle Mkt. Dev. (US), LLC* (2012) 55 Cal.4th 223, 236. "[T]he doctrine of unconscionability has both a procedural and substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." Sanchez

v. Valencia Holding Co., LLC (2015) 61 Cal. 4th 899, 910.

The

threshold issue is whether a valid agreement to arbitrate exists. See *Mitsubishi Motors Corp. v. Soler Chrysler-Plymouth, Inc.* (1985) 473 U.S. 614, 626.

Under California law, the party seeking to compel arbitration has the burden of proving its existence by a preponderance of the evidence. *Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413. Defendant offers an unsigned warranty handbook exemplar, purportedly included with each vehicle sold in the glovebox, which contains an arbitration clause. See Decl. Pacheco, paras. 3, 6-7, exh. A. Plaintiff purchased the subject vehicle in August 2024. Id. at para. 4. Defendant asserts the subject vehicle would have come with a copy of the warranty handbook. Id.

Plaintiff

admittedly purchased the vehicle in August 2024 but disputes being shown or informed of the purported warranty handbook or included arbitration clause.

Decl. Mares, paras. 3-6. Plaintiff never signed an agreement containing an arbitration provision between plaintiff and defendant. Id. at para. 3-4.

Plaintiff never expressed verbal or written agreement to be bound by the purported arbitration agreement within the warranty handbook. Id. at paras. 6-9.

Defendant

offers no signed, written agreement containing an arbitration provision, nor any communications or other acts by plaintiff demonstrating the parties entered into an agreement to arbitrate. The law is clear: an essential element of any contract is the consent of the parties, or mutual assent, which must be communicated by each party to the other. See *Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270; Civ. Code, §1565. Defendant offers no evidence, such as a dealership affidavit, establishing the handbook was actually provided to plaintiff. Regardless, a unilateral arbitration clause in an unsigned warranty handbook is not sufficient to find that an agreement to arbitrate was formed. Defendant failed to meet its burden. DENIED.